

PERFORMANCE WORK STATEMENT (PWS)

FOR

FLOW METER SYSTEMS PREVENTIVE MAINTENANCE

1.0 General:

1.1 Scope: The contractor shall provide all personnel, equipment, tools, materials, supervision, quality control and other items and non-personal services necessary to perform preventive maintenance and repair services to Flow Meter Systems located at the Industrial Wastewater Treatment Plant and the Groundwater Treatment Plant as defined in this PWS, except as specified in Paragraph 3.0 as Government Furnished. The contractor shall perform to the standards in this contract.

1.2 Background: The meters are located in the Industrial Wastewater Treatment Plant and regulate the plant to keep it within the environmental standards.

1.3 Period of Performance (PoP): The Period of Performance shall be one Base Year of twelve (12) months and four (4), twelve (12) month option years.

1.4 General Information:

1.4.1. Quality Control (QC): The contractor shall use its existing quality assurance system to accomplish all inspection and testing needed to ensure that the commercial services conform to contract requirements before the contractor presents the services to the Government. The contractor shall also provide their commercial warranties for the services to be delivered.

1.4.2. Reserved

1.4.3. Depot Operating Days: Recognized US holidays and the date for each can be found at the following website: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>. The contractor shall not perform services on these days. The Depot recognizes a regular closure day that occurs every other Friday. If the holiday falls on Saturday, the preceding Friday will be observed, or Thursday if Friday is an off day. If the holiday falls on Sunday, the following Monday will be observed.

1.4.4. Place and Performance of Services: The contractor shall provide services between the hours of 0630 – 1600, Monday through Friday, except on recognized US holidays or when the Government facility/installation is closed due to local or national emergencies, administrative closings, or similar Government-directed facility/installation closings. Performance shall be at Letterkenny Army Depot. The contractor shall at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility/installation is not closed for the above reasons.

1.4.5. Security Requirements: Contractor and all associated sub-contractor's employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative). The contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce shall comply with all personal identity verification requirements as directed by DOD, HQDA and/or local policy. Should the Force Protection Condition (FPCON) change, the Government may require changes in contractor security matters or processes. All contractors and subcontractors shall be Real I.D. verified through the Security Office.

1.4.5.1. The use of photography equipment is not permitted without proper authorization from the LEAD security manager in any area on the installation this includes the area between the barbed wire fence and the boundary fence, and areas leased by the Government. Requests for camera use shall be submitted in writing to the COR for approval before use on Government owned or leased property.

1.4.5.2. Public Disclosures: The Contractor shall make no public announcement or disclosure relative to information contained or developed under this contract, except as authorized by the KO or the COR.

1.4.5.3. Search and Control: Letterkenny is a controlled access post. All vehicles and personnel are subject to search and seizure of contraband and/or unauthorized government property. Contractor vehicles (Contractor-owned and personal), contractor employees, and their personal property will be subject to searches and seizure of contraband and/or unauthorized government property upon entering or leaving the Installation. The search and seizure provisions of AR 190-13, Chapter 8, will apply to contractor personnel entering or leaving Letterkenny.

1.4.5.4. Physical Security: The contractor shall safeguard all Government property provided for contractor use. At the close of each work period, Government facilities, equipment and materials shall be secured.

1.4.5.5. AT Level 1 Awareness Training: This standard language is for contractor employees with an area of performance within an Army controlled installation, facility or area. All contractor employees, including subcontractor employees, requiring access to Army installations, facilities, and controlled-access areas shall complete AT Level I awareness training within 30 calendar days after the contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after completion of training by all employees and subcontractor personnel. AT Level I awareness training is available at the following website: <http://www.letterkenny.army.mil/ctrresources/>

1.4.5.6. iWATCH Training: This standard language is for contractor employees with an area of performance within an Army controlled installation, facility or area. The contractor and all

associated sub-contractors shall brief all employees on the local iWATCH program (training standards provided by the requiring activity ATO). This local developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 30 calendar days after contract award. iWATCH training is available at the following website: <http://www.letterkenny.army.mil/ctrresources/>

1.4.5.7. OPSEC Training: Per AR 530-1 Operations Security, the contractor employees must complete Level I OPSEC Awareness training. New employees must be trained within 30 calendar days of their reporting for duty and annually thereafter. Level I OPSEC Awareness training is available at the following website: <http://www.letterkenny.army.mil/ctrresources/>

1.4.5.8. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR or to the KO, within 15 calendar days after completion of training.

1.4.6 Conservation of Utilities: The contractor shall instruct employees in utilities conservation practices. The contractor shall operate under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount.

1.4.7 Special Qualifications: The contractor shall ensure all employees performing these services possess all required licenses for maintaining the equipment listed in section 5.0 below and shall be certified for confined space entry IAW 29 CFR 1910.146. and all associated equipment used in the performance of this contract. The Government does not provide training for contractors. Contractors must ensure that any personnel performing under a contract are fully trained, licensed, certified and qualified for the position in which they will be serving.

1.4.8 Post Award Conference/Periodic Progress Meetings: The contractor agrees to attend any post award conference convened by the KO. The KO, TPOC, and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings, the KO will apprise the contractor of how the Government views the contractor's performance and the contractor shall apprise the Government of problems, if any, being experienced. The contractor shall resolve outstanding issues raised by the Government. Contractor attendance at these meetings shall be at no additional cost to the Government.

1.4.9 Contract Manager (CM): The contractor shall provide a CM who shall ensure performance under this contract. The name of this person, and an alternate who shall act for the contractor when the CM is absent, shall be designated in writing to the KO and TPOC. The CM or alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract.

1.4.9.1. The designated representative will direct the Contractor's working force and operations in accordance with the requirements specified within this performance work statement and shall be empowered with sufficient authority to enable him/her to meet conditions and make decisions which arise in the day-to-day operations.

1.4.9.2. Other Personnel: The Contractor shall furnish supervisory, administrative, and direct personnel to accomplish all work required. Contractor may not hire off-duty government personnel or any other persons, whose employment would result in a conflict with Standards of Conduct.

1.4.9.3. Contractor's Employees: The Contractor shall provide personnel possessing the skills, knowledge, and training to satisfactorily perform the services required by this contract. Personnel performing work under this work statement shall remain employees of the Contractor and shall not be considered employees of the Government.

1.4.9.4. Employee Briefing: Each employee used in conjunction with this contract shall receive a thorough briefing by the Contractor relating to the standards of work to be achieved and maintained under the contract, and the personal conduct, regulations, and safety measures that must be observed while on the installation.

1.4.9.5. Employee Conduct: In accordance with AR 600-85, The Army Substance Abuse Program dated 2 February 2009, the Contractor shall not allow any employee to perform work who has illegal possession of, or who is under the influence of alcohol or controlled substances. http://www.apd.army.mil/pdffiles/r600_85.pdf. Government rules, regulations, laws, directives, and requirements, which are in place or issued during the contract term will be applicable to all contractor employees or representatives who enter the Installation or who travel using government transportation. Violation of such rules, regulations, laws, directives, or requirements will be grounds for removal (permanently or temporarily as the Government determines) from the work site. Individuals who violate such rules, regulations, laws, directives, or requirements may be denied access to the Installation, either temporarily or permanently. As outlined in AR 190-5, being charged with DUI or any serious traffic offense individuals' privilege to drive on installation can be suspended for one year. http://www.apd.army.mil/pdffiles/r190_5.pdf This is also covered in LEAD Reg. 1-6.

1.4.9.6. Employee Appearance: Contractor employees shall be appropriately dressed including any necessary individual protective clothing, equipment and uniforms, for the work to be done.

1.4.9.8. Conflict of Interest: The Contractor shall not employ any employee of the United States Government, either military or civilian, if such employment would create a conflict of interest. The Contractor shall not employ any person who is an employee of the Department of Defense, unless such person receives prior approval in writing.

1.4.9.9. Conduct of Personnel: The Contractor may be required to remove from the job site any employee working under this PWS for reasons of misconduct, or security, or found to be or suspected to be under the influence of alcohol, drugs, or other incapacitating agent. The Contractor's employees shall be subject to dismissal from the premises upon determination by the KO that such action is in the best interests of the Government. Such removal from the job site or dismissal from the premises will not be the basis for a claim by the Contractor and will not relieve the Contractor of the requirement to provide sufficient personnel to perform the services as required by this PWS.

1.4.9.10. Identification of Contractor Employees: All contact personnel attending meetings, answering Government telephones and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. The contractor shall also ensure that all documents or reports produced by contractor personnel are suitably marked as contractor products or that contractor participation is appropriately disclosed.

1.4.10. Data Rights: The Government has unlimited rights to all documents/material produced under this contract. All documents and materials, to include the source codes of any software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership/copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the contractor without written permission from the government. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.4.11. Organizational Conflicts of Interest (OCI): The contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent OCIs, as defined in FAR Subpart 9.5. The contractor shall notify the KO immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the KO to avoid or mitigate any such OCI. The contractor's mitigation plan will be determined to be acceptable solely at the discretion of the KO and in the event the KO unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the KO may affect other remedies as he or she deems necessary, including prohibiting the contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.4.12. Lost and Found Property: It is the responsibility of the Contractor to ensure all articles of possible personal or monetary value found by the Contractor's employees are immediately turned in to the Security Office, located in Building 322, and reported to the Police Desk phone (717) 267-8800.

1.4.13. Non-Contractual Direction: Direction that contradicts contractual direction on task execution or which appear to violate licensing and/or proprietary considerations, will be immediately brought to the attention of the TPOC and KO in writing through email.

2.0 Definitions and Acronyms:

2.1.1 CONTRACTOR. A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

2.1.2 CONTRACTING OFFICER (KO). A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

2.1.3 CONTRACTING OFFICER'S REPRESENTATIVE (COR). An employee of the U.S. Government designated by the KO to monitor contractor performance. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.4 DEFECTIVE SERVICE. A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.5 DELIVERABLE. Anything that can be physically delivered and includes non-manufactured things such as meeting minutes or reports.

2.1.6 KEY PERSONNEL. Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.7 PHYSICAL SECURITY. Actions that prevent the loss or damage of Government property.

2.1.8 QUALITY ASSURANCE. The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.9 QUALITY ASSURANCE SURVEILLANCE PLAN (QASP). An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.10 QUALITY CONTROL. All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.11 SUBCONTRACTOR. One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.1.12 WORK DAY. The number of hours per day the Contractor provides services in accordance with the contract.

2.1.13 WORK WEEK. Monday through Friday, unless specified otherwise.

2.2 ACRONYMS:

AFARS	Army Federal Acquisition Regulation Supplement
ANSI	American National Standards Institute
AR	Army Regulation
CFR	Code of Federal Regulations
CLIN	Contract Line Item Number
CM	Contract Manager
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DOD	Department of Defense
FAR	Federal Acquisition Regulation
HWMP	Hazardous Waste Material Plan
IWTP	Industrial Waste Treatment Plant
KO	Contracting Officer
LEAD	Letterkenny Army Depot
MBBR	Moving Bed Biological Reactor
MSDS	Material Safety Data Sheet
NFPA	National Fire Protection Association
OCI	Organizational Conflict of Interest
ODC	Other Direct Costs
OPSEC	Operational Security
OSHA	Occupation Safety and Health Standard
PA	Pennsylvania
PADEP	Pennsylvania Department of Environmental protection
PIPO	Phase In/Phase Out
POC	Point of Contact
POP	Period of Performance
POV	Privately Owned Vehicle
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAE	Quality Assurance Evaluator
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
OSHA	Occupational Safety & Health Standards
SDS	Safety Data Sheeet
SMS	Safety Management System
SOP	Standard Operating procedure
TE	Technical Exhibit

UIC	Unit Identification Code
U.S.C	United States Code
WAWF	Wide Area Workflow

3.0 Government Furnished Property, Material, Equipment and Services (GFP/M/E/S): The Government will provide the facilities, equipment, materials, and/or services listed below:

3.1 Facilities: The Government will furnish the necessary workspace for the contractor staff to provide the support outlined in this PWS to include desk space, telephones, computers and other items necessary to maintain an office environment.

3.2 Equipment: None

3.3 Materials: None

3.4 Services: Direction that contradicts contractual direction on task execution or which appear to violate licensing and/or proprietary considerations, will be immediately brought to the attention of the Contracting Officer in writing or certified electronic document for resolution. Direction given to any Contracted employee by anyone else other than the COR or the KO will not be reimbursed. Only tasks identified in the contract or modifications to the contract will be honored for payment.

3.5 Utilities: All utilities in the facility will be available for the contractor's use in the performance of this contract.

4.0 Contractor Furnished Property, Materials, Equipment (CFP/M/E):

4.1 General: Except for those items specifically stated to be Government-Furnished in Paragraph 3.0, the contractor shall furnish everything required to perform these services as indicated in Paragraph 1.1.

4.2. Materials: The Contractor shall furnish all materials, except Government furnished, necessary to perform the tasks specified in the contract. The Government will not be held responsible for damage to the Contractor's supplies, materials, equipment or personal belongings brought onto the installation by employees of the Contractor.

4.3. Equipment and Tools: The Contractor shall furnish all equipment and tools necessary to properly perform the work defined in this contract. All equipment used by or proposed to be used by the Contractor shall be in good mechanical condition.

4.3.1. All vehicles used by the Contractor in the performance of the work will be operated to conform to the vehicle code of the Commonwealth of Pennsylvania, http://www.dmv.state.pa.us/vehicle_code/index.shtml as applicable.

5.0 Requirements:

5.1 The Contractor shall perform quarterly inspection and maintenance of 2 each Endress + Hauser Prosonic S ultra-sonic flow meters, 1 each Badger Model 2500 Ultrasonic Level Sensor, 1 each Chessell Chart Recorder, 1 each Siemens Flow Meter and 1 each McCrometer Ultra Maglow Flow Meter, in accordance with the original equipment manufacturers recommendations to maintain those meters and recorders at the original manufacturer's operational level.

5.1.1 During the quarterly inspection and maintenance, the contractor may identify needed repairs and recommend corrective action. Upon identifying needed repairs, the contractor submits a work request identifying the over and above work and, as appropriate, the Government may authorize the contractor to proceed. See section 5.3.

5.1.2 The Contractor shall coordinate the scheduling of the quarterly inspection and maintenance with the TPOC.

5.2 Contractor shall respond and assess any maintenance or repair issues outside of the quarterly inspections within 24 hours of being notified if the government deems the issue urgent. Otherwise the Government may request the contractor to respond and assess any maintenance or repair issues outside of the quarterly inspections. Contractor shall prepare and provide the government with a work request as specified in section 5.3.1.

5.3 Over and Above (O&A) Work: O&A work is defined in clause 252.217-7028. The O&A work Contract Line Item (CLIN) is a not-to-exceed amount. The Contractor is authorized to proceed with work as directed by the TPOC after they have reviewed the work request and authorized the work in accordance with 252.217-7028(d). The Contractor shall not proceed with work that is expected to exceed the not-to-exceed amount without prior written or verbal authorization of the Contracting Officer.

5.3.1 O&A Work Request: Upon identifying O&A work, the contractor shall provide a work request to the TPOC. The work request shall include the information in 252.217-7028(b)(1) to include a price estimate to complete the work. If the price estimate is at or above the not-to-exceed amount provided in the O&A Work CLIN, the work request shall be provided to the TPOC and Contracting Officer. The Contracting Officer is the approval authority of all work requests over the not-to-exceed amount. If more than one work request has been submitted and approved and not yet definitized by modification, the total amount of all submitted work requests not definitized shall not exceed the not-to-exceed amount until the work request has been definitized by modification or authorized by the Contracting Officer.

5.3.2 After the work request has been approved, the Contractor shall promptly submit to the Contracting Officer a proposal for the O&A work, but not later than 5 days after the initial work request is approved by the Government. The Government will review the proposal and may negotiate with the Contractor the final proposed price for the O&A work, this may be before the work is completed. After the Contracting Officer has approved the proposal for the O&A work, a modification will be issued to definitize the O&A work on a new CLIN. The definitized price will not be subject to change after the modification is executed. O&A work shall be invoiced against the new CLIN for that specific O&A work, not the O&A work not-to-exceed CLIN.

5.4. Repair parts shall be the manufacture's recommended parts or equal. If the part is an "or equal" part it shall be stated on the quote as such and subjected to approval.

5.5. Reports/Service Tickets: Service reports/tickets shall be submitted to the COR upon completion of any work. Reports will be used to certify invoices for payment.

6.0 Applicable Publications & Safety Requirements:

6.1. Documents applicable to this Performance Work Statement are listed below as well as stated within the PWS. These documents are mandatory and the Contractor is obligated to follow them as applicable to the services being performed under this contract. Supplements and amendments to mandatory publications will be considered to be in full force. It is the Contractor's responsibility to ensure that all mandatory publications are addressed to all employees working on depot. Manuals are subject to change throughout the life of the contract. The contractor will follow the latest addition to any regulation, pamphlet, law or memorandum.

6.2. Army Regulation and Pamphlets: All Army Regulations apply to any work performed on Depot and can be found at the following website: <http://www.whs.mil/library/mildoc.htm> An nonexclusive list includes AR 385-10 Army Safety Program, and AR 385-55 Prevention of Motor Vehicle Accidents.

6.3 Other Manuals: All LEAD Regulations, Pamphlets, and Memorandums apply to any work performed on Depot. An nonexclusive list includes:

6.3.1. OSHA Part 1910 - Occupational Safety and Health Standards can be found at <http://www.osha.gov/index.html> under Regulations/Standards.

6.3.2. Lead Pamphlet 385-4 Requirements for Security, Safety and Fire Prevention for Contractor's Performing Work on LEAD.

6.3.3. LEAD Regulation 385-1 LEAD Safety and Occupational Health Program.

6.3.4. It is the contractor's responsibility to be familiar with these documents and to comply with their contents.

6.4. Reserved

6.5. Local Rules and Regulations: The contractors, subcontractors, suppliers and their employees will be governed by local, state and federal Laws along with installation rules and regulations. All the installation requirements are in the current issue of the pamphlet LEAD Reg 385-4 entitled "Security, Safety, and Fire Prevention for Contractors Performing Work on Letterkenny Army Depot, Chambersburg, PA", see Attachment 5, Pamphlet 385-1 "LEAD Safety & Occupational Health Program", and shall be strictly complied with. Provisions for unescorted access into buildings are outlined in Chapter 2 of AR 190-16.

6.6. Permits: The Contractor is responsible for identifying, obtaining and renewing all permits from federal, state, local, or installation agencies to carry out the requirements specified in this contract or detailed on an individual task order.

6.7. Fire Regulations: The Contractor and his employees shall be required to comply with all installation regulations on fire prevention which are in effect or may be put in effect during performance of work under this contract. It is the Contractor's responsibility to ensure that all mandatory publications are addressed to all employees working on Depot.

6.8. Fire Extinguishers: Extinguishers must be on all motorized equipment and trailers if they are to enter the Munitions Area. If one is not mounted to the motorized equipment and trailer, access will be denied into the area.

6.9. Safety Requirements: The Contractor will abide by all rules, regulations, and pamphlets concerning safety on depot posted by local, state, and federal agencies. It is the Contractor's responsibility to ensure that all mandatory publications are addressed to all employees working on depot. Disregarding safety regulations in the industrial area will not be tolerated.

6.8. The Contractor is reminded that LEAD maintains a Safety Management System (SMS) and is either ISO 45001 certified, AS9100 and AS9110 certified

6.8.1. LEAD Safety Program and Occupational Health Program (LEAD-R 385-1) can be found at <https://www.letterkenny.army.mil/Info/Visitors-Information> under Installation Resources\LEAD Safety and Occupational Health Program. The Army Safety Program and Occupational Health Program is AR-385-10.

6.9. Contractor/Subcontractor will conduct work on Letterkenny Army Depot in compliance with the most current version of 29 CFR 1910 and 29 CFR 1926 (where applicable). Each contractor/subcontractor will be familiar with the types of work they are expected to perform and each phase of the operation and associated hazards. All worksites will be free of recognized hazards (per LEAD-R 385-1 27-2).

6.9.1. Each worksite will be assessed for hazards prior to the start of work. All training certifications and an Activity Hazard Analysis (AHA) will be on hand at the job site.

6.9.2. All on site work at LEAD shall be completed in accordance with applicable OSHA, DoD, Army, and LEAD Safety requirements. As a federal installation, additional requirements other than OSHA apply to contractors performing work at LEAD. Examples include full conformance to all applicable NFPA standards, ANSI standards, and other consensus standards for the industry covered by the subject contract. It is the responsibility of the contractor to be familiar with all applicable standards prior to starting work. Additionally, the contractors shall make themselves familiar with and comply with LEAD's local safety regulation LEAD-R 385-1, AR 385-10, and LEAD-R 420-13 prior to the start of any work at LEAD.

6.9.3. Meet or exceed LEAD-R 385-1, the LEAD safety and Occupational Health Program.

6.10. All contractor personnel shall wear the appropriate LEAD approved PPE when in the following work areas: industrial buildings, construction sites, test sites and test facilities as directed by LEAD-R 385-1.

6.11. The Contractor shall maintain an effective site safety plan that meets or exceeds the requirements of OSHA, DoD, Army Requirements, and LEAD-Regulation 385-1.

6.11.1. Safety Reports shall be provided to TPOC, LEAD Safety Office, and database.

6.11.2. Contractor will meet or exceed ASME 20.1 Safety Standard for conveyors and equipment, AWS D1.1/D1.1M Structural Welding Code, NEMA ICS 6 – Enclosures for Industrial Controls and Systems, and NEMA 12.1 American National Standard for Electric Meters Code for Electricity Metering.

6.12. As part of the applicability of engineering controls, all equipment with rotating and moving parts at the point of operation shall meet or exceed the LEAD 385-1 Chapter 17-3 machine guarding requirements.

6.12.1 The contractor shall meet or exceed LEAD lockout/tagout (LOTO) action and procedures for addressing and controlling hazardous energy during service and maintenance of machines and equipment in accordance with LEAD-R 385-1, Chapter 12. See LEAD Technical Point of Contact (TPOC) for the safe servicing and maintenance of machines and equipment, in which unexpected, energized equipment, damage to equipment or start-up of machine or equipment, or release of stored energy, could cause injury to employees.

6.12.2. Use of Portable Gas or ARC Equipment: The Contractor will be required to obtain, from the Letterkenny Fire Department, a permit to use portable gas or arc equipment for cutting, welding, or open flame operations. The Fire Department will require one day advance notice to permit necessary inspection, notification before starting work, and notification when work is completed to allow for re-inspection. The Letterkenny Fire Department shall be contacted for the proper type and number of fire extinguishers needed prior to beginning the contracted work. Letterkenny will not provide any fire extinguishers to the contractor.

6.12.3. Equipment installation/set-up, service, maintenance, and testing shall be conducted accordance with the equipment manufacturer specifications, and according to the frequently recommended by the manufacturer.

6.12.4. The contractor shall have full responsibility for keeping contractor employees trained in the LEAD Safety and Occupational Health program, LEAD-R 385-1. The contracted workforce employees shall meet and or exceed the LEAD-R 385-1 and OSHA Standards.

6.12.5. Contractors will comply with the Occupational Safety and Health Administration

(OSHA) standards and LEAD R-385-1, and AR 385-10, safety rules, regulations. Contractor shall have available copies of certifications, training certificates, required permits, and the Contractor's safety plan or hazard analysis for the jobs to be performed at Letterkenny Army Depot (LEAD) and Directorate of Missile Aerospace Readiness (DMAR). Each contractor/subcontractor will be familiar with the types of work they are expected to perform and each phase of the operation and associated hazards.

6.11. The Contractor will meet or exceed all of the LEAD safety and Occupational Health Program LEAD-R 385-1, LEAD Safety Bulletins, Army Safety Program and Occupational Health Program AR-385-10, OSHA, NFPA, ANSI, DoD, UFC, DOT, 29 CFR Title 1910 and 29 CFR Title 1926, Federal, State, and other consensus standards for the industry covered by the subject contract. In the case of a conflict among these laws, regulations, and standards contact the COR for clarification.

6.13. If Contractor personnel determine a procedure is unsafe, they shall discontinue work immediately and contact their Program Manager who shall notify safety personnel and the COR. As soon as LEAD Safety Office personnel determine that the unsafe conditions have been corrected, the COR will notify the Contractor Program Manager that personnel may resume work.

6.13.1. Contractors who are managed under a different Safety Management System (SMS) must report injuries, accidents, and near misses to the Safety Office through their COR representative. The TPOC shall notify the Safety Office within 24 hours of a contractor (Labor workforce) reporting an injury, accident, or near miss.

6.13.2. All safety messages or recalls related to the safe use of products provided by the contractor will be provided to the LEAD POC for the Contract within 5 days of contractor's awareness of the message or notice.